

Republika ng Filipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG PANLUNGSOD, CITY OF DAVAO, HELD ON FRIDAY, OCTOBER 10, 1986.

PRESENT:

OIC Rodrigo R. Duterte, Office of the Vice Mayor,
Presiding Officer, Councilors Ruben V. Abarquez,
Nicanor A. Magne, Danilo C. Dayanghirang, Tomas
Monteverde, Jr. Teodulfo L. Vega, Antonio H.
Vergara, Antonio S. Castillo, Luzviminda C. Ilagan,
Dante P. Escalante, Rene V. Galope, Jacinto T.
Rubillar, Jr., Cesar R. Ledesma, Corazon N.
Malanyaon, Benjamin G. Baniño, Luis N. Lacerna and
Nilo G. Abellera.

ABSENT:

Councilors Robert Alan Limso and Rafael Reyes, Jr.

* * *

RESOLUTION NO. 419

A proposed Ordinance requiring persons and/or business establishments such as restaurants, cenderias, food stalls and other related outlets serving barbecued meat such as pork, beef, chicken, fish and other food preparations needing the use of bamboo sticks or skewers, to remove the pointed sticks completely or cut their sharp ends before serving to customers, was presented for consideration and appropriate action of the Body, by Councilor Jacinto T. Rubillar, Jr., co-sponsored by Councilor Tomas Monteverde, Jr.

Councilor Rubillar stressed the fact that used or unused pointed barbecue sticks can be conveniently used as deadly weapons. Secondly, they could also hurt or injure people who might accidentally step on them, and thirdly, used uncut and/or unbroken barbecue sticks can be used again after a little washing, which is insanitary.

Councilor Rubillar stated further that to ensure public safety and sanitation, he proposed punitive actions against those caught violating this proposed ordinance to wit:

for the first offense, a fine of ₱ 50.00

for the second offense, a fine of ₱100.00

for the third offense, a fine of ₱150.00 and

for the fourth offense, a fine of ₱200.00 or imprisonment of one (1) month or both upon the discretion of the court in case of individuals and closure of such business establishment and cancellation of permits issued thereof.

Resolution No. 419, series of 1986, contd.:

Counciler Nicanor A. Magno manifested that in order to add more teeth to said ordinance, he proposed amendments to the effect that for the first offense, a fine of ₱100.00 be imposed, for the second offense, ₱150.00 and for the third violation, ₱200.00 or an imprisonment of one (1) month or both upon the discretion of the court in case of individuals and closure of such business establishments with the cancellation of permits issued thereof. The amendments were accepted by the proponent.

After careful deliberation, on motion of Counciler Jacinto T. Rubillar, Jr., co-sponsored by Counciler Tomas Monteverde, Jr., duly amended and seconded by Counciler Nicanor A. Magno, it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve an Ordinance entitled:

ORDINANCE NO. 115

AN ORDINANCE REQUIRING PERSONS AND/OR BUSINESS ESTABLISHMENTS SUCH AS RESTAURANTS, CARENDERIAS, FOOD STALLS AND OTHER RELATED OUTLETS SERVING BARBECUED MEAT SUCH AS PORK, BEEF, FISH OR ANY FOOD PREPARATION NEEDING THE USE OF BAMBOO STICKS OR SKEWERS TO REMOVE THE POINTED STICKS COMPLETELY OR CUT THEIR SHARP ENDS BEFORE SERVING TO CUSTOMERS, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that;

SECTION 1. - Any business establishment such as restaurants, carenderias, sidewalk stalls or establishments preparing food for public consumption and display, which serves barbecued meat such as Pork, beef, chicken, fish or food requiring the use of barbecue sticks or skewers is hereby required to cut the sharp ends or remove the barbecue sticks or skewers completely before serving to the customer;

SECTION 2. - Any used barbecue stick or skewer shall not be used again thereafter;

SECTION 3. - Violations hereof shall subject the owners, proprietors or managers of business establishments mentioned under Section 1 hereof to the following:

for the first offense, a fine of ₱100.00

for the second offense, a fine of ₱150.00

for the third offense, a fine of ₱200.00 or

an imprisonment of one (1) month or both upon discretion of the Court and closure of the business establishment with the cancellation of the business permit;

SECTION 4. - This Ordinance shall take effect upon approval.

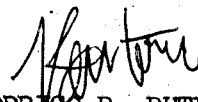
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Resolution No. 419, series of 1986, cont'd.:

ENACTED: OCTOBER 10, 1986.

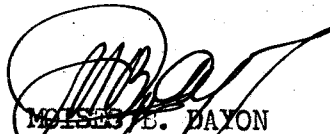
CARRIED, by a majority of Fifteen (15) affirmative votes.
Councillor Dayanghirang was out when the votes were taken.

APPROVED:



RODRIGO R. DUTERTE
Officer-In-Charge
Office of the Vice Mayor
Presiding Officer

ATTESTED:



MOISES E. DAYON
Acting Secretary
Sangguniang Panlungsod
aba/aad

APPROVED: _____, 1986

ZAFIRO L. RESPICIO
Officer-In-Charge
Office of the City Mayor

LAPSED

ATTESTED: APPROVED AFTER THE
30 DAYS SEC. 18, PAR 2
O.A. NO. 43540

CONRADO A. ESTUART
City Secretary